



Anti-Corruption Compliance Program

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Definitions

Client: any person using the services of CPCS.

CPCS Global Anti-Corruption Training: the approved CPCS training course provided during the onboarding process.

Partners: includes any:

- person for whom CPCS acts as a sub-contractor in any given project or person acting as sub-contractor to CPCS; and
- joint venture partner.

Staff: all of CPCS employees (including those in management positions) and exclusive associates.

Due Diligence: submitting for completion by the person being subject of the due diligence investigation CPCS Third Party Due Diligence Questionnaire ([EN](#) / [FR](#)).

Whistleblower: Any Staff who knows or suspects that another Staff or a member of CPCS Board of Directors has committed or is about to commit an act contrary to the provisions of the [Corruption of Foreign Public Officials Act](#) and wishes to inform CPCS in a confidential manner.

Introduction

Any Canadian company or individual operating in a foreign country must be aware of, and ensure it, he or she complies with, the *Corruption of Foreign Public Officials Act* and any local anti-corruption laws. For the purposes of this Anti-Corruption Compliance Program, we are treating all of our subsidiaries as Canadian Companies [1].

Code of Ethics

The CPCS [Code of Ethics](#) must be reviewed and signed by all Staff on an annual basis.

Point of Contacts

The [Human Resources Manager](#) has been nominated as CPCS contact person to deal with any matter concerning the implementation of CPCS Anti-Corruption Compliance Program and questions staff may have regarding compliance with the provisions of the *Corruption of Foreign Public Officials Act*.

External Board of Directors Member, Carman Joynt, has been nominated as CPCS contact person to hear any allegations of wrongdoing from Whistleblowers concerning the non-compliance by staff or a member of CPCS Board of Directors of the *Corruption of Foreign Public Officials Act*.

Communications and Training

Communications

Staff are made aware of the Code through an annual process of review and signature by way of CPCS' online Human Resources Management Platform ("Lanteria"). The Managing Partners will continue to emphasize the binding nature of the *Corruption of Foreign Public Officials Act*, and CPCS continued efforts to abide by it, through bi-annual communications to all staff.

Training

All staff must complete CPCS' Global Anti-Corruption Online Training Program.

New Staff

The following items are mandatory as part of all new staff orientation:

- Review and signature of the CPCS [Code of Ethics](#);
- Successful completion of CPCS Global Anti-Corruption Training

This training is monitored by the [Human Resources Manager](#) and its results included in the Managing Partners' yearly compliance report to CPCS Board of Directors.

Due Diligence

Agent Agreements

All agreements with persons engaged to act as agents, facilitators or local intermediaries for CPCS ("Agents") require the prior approval of the [Corproate Affairs Manager](#) and of the [VP Finance](#).

Due diligence is carried out on any potential Agent by the Divisional VP. The completed CPCS Third Party Due Diligence Questionnaire must be submitted to the [Corproate Affairs Manager](#) before he approves the Agent Agreement.

The [VP Finance](#) shall ensure to ensure that the remuneration of the Agent is appropriate and commensurate with the service provided.

A list of all Agent Agreements and any payments made under such agreements will be included in the Managing Partner's yearly compliance report to CPCS Board of Directors.

Agreements with Agents must include the following anti-corruption clause:

Corruption of Public Officials

The Agent shall not, in order to obtain or retain an advantage in the course of the performance of the Services, either for itself [himself/herself] or CPCS, directly or indirectly gives, offers or agrees to give or offer a loan, reward, advantage or benefit of any kind to a public official or to any person for the benefit of a public official:

- as consideration for an act or omission by the official in connection with the performance of the official's duties or functions; or
- to induce the official to use his or her position to influence any acts or decisions of the state or public international organization for which the official performs duties or functions.

Partners

Before CPCS decides or not to partner with a prospective Partner:

- Due diligence must be carried out on any such prospective Partner by the Divisional VP; and
- The completed CPCS Third Party Due Diligence Questionnaire must be submitted to the [Corproate Affairs Manager](#).

All subcontract agreements entered into by CPCS with a subcontractor must include the following anti-corruption clause:

Corruption of Public Officials

The Subcontractor shall not, in order to obtain or retain an advantage in the course of the performance of the Services, either for itself [himself/herself], CPCS or the Client, directly or indirectly gives, offers or agrees to give or offer a loan, reward, advantage or benefit of any kind to a public official or to any person for the benefit of a public official:

- as consideration for an act or omission by the official in connection with the performance of the official's duties or functions; or
- to induce the official to use his or her position to influence any acts or decisions of the state or public international organization for which the official performs duties or functions.

All joint venture agreements entered into by CPCS with a joint venture partner(s) must include the following anti-corruption clause:

Anti-Corruption

Each Party represents and warrants to the other Party that it and its respective affiliates (including their respective directors, officers, shareholders, employees and agents) will conduct all of their respective activities in connection with the performance of any of their obligations under or in connection with the Agreement, in accordance with all applicable anti-corruption legislation, regulations and other requirements of national and foreign governmental agencies having jurisdiction over such activities, including national legislation implementing the OECD Convention on Combating Bribery of Foreign Public Officials in International Business Transactions.

Each Party further represents and warrants that neither it nor its affiliates (including their respective directors, officers, shareholders, employees and agents):

- have paid, offered, or promised to pay, or authorised, directly or indirectly, the payment of any money or anything of value to any person (including any public official or employee) for the purpose of illegally or improperly inducing that person to take action or omit to take action in connection with any matter that needed to precede the signature of the Agreement; or
- shall pay, offer, or promise to pay, or authorize, directly or indirectly, the payment of any money or anything of value to any person (including any public official or employee) for the purpose of illegally or improperly inducing that person to take action or omit to take action in connection with the performance of any of their obligations under or in connection with the Agreement.

Each Party further represents and warrants that it and its affiliates (including their respective directors, officers, shareholders, employees and agents) shall at all times conduct all of their respective activities in connection with the performance of any of their obligations under or in connection with the Agreement in a proper and ethical manner.

Audit and Reporting

The Vice-President, Finance and our external auditors shall monitor transactions with Agents, Partners and JV Partners and report any breaches to the procedures put in place under CPCS Anti-Corruption Compliance Program to the Managing Partners.

The Managing Partners will report annually to the Board of Directors on compliance with CPCS Anti-Corruption Compliance Program.

[1] CPCS Transcom Inc. and every U.S. persons is subject to the Foreign Corrupt Practices Act of 1977 (FCPA) (15 U.S.C. § 78dd-1, et seq.).